

BERNALILLO COUNTY — APPEAL TO COUNTY COMMISSION

Planning and Development Services | 415 Silver Ave. SW, 2nd Floor, Albuquerque, NM 87102 | (505) 314-0350

CERTIFICATION OF 20% PROTEST PETITION

Case No. ZBA2026-0001 / BA2026-001 / ZA2026-0024

COMES NOW the Appellant, Pat Hauser, President of the Maria-Diers Neighborhood Association, on behalf of the Association and the petition signers identified herein, and pursuant to Section 25 of the Bernalillo County Zoning Ordinance and NMSA 1978 § 3-21-6(C), hereby certifies, under the penalties of perjury under the laws of the State of New Mexico, as follows:

1. **Appeal and Subject Property.** This Certification is submitted in support of the Appeal of the Bernalillo County Planning Commission's July 1, 2026 decision (Case No. ZBA2026-0001 / BA2026-001 / ZA2026-0024) approving a Conditional Use Permit for the Albuquerque Islamic Center at 9600 2nd Street NW, Albuquerque, New Mexico 87114 (Tract 208B, MRGCD Map 23). The Appeal Application and accompanying Appeal Brief are incorporated herein by reference.
2. **Attached Petition.** Attached hereto as Exhibit 26 is a written protest petition signed by neighboring property owners invoking the 20% protest rule for appeals to the Board of County Commissioners, submitted in support of the Appeal and the relief sought therein.
3. **Genuineness of Signatures.** To the best of my knowledge and belief, the signatures appearing on the attached petition are genuine, were affixed by the persons named beside them, and were obtained voluntarily and without coercion, inducement, or compensation.
4. **Status of Signers.** To the best of my knowledge and belief, each signer is an equitable owner of record (and not merely a tenant) of the parcel identified beside his or her signature on the petition, each of which parcel is located in the vicinity of the subject property.
5. **Invocation of Extraordinary-Majority Vote.** This petition is submitted to invoke the extraordinary-majority voting standard under Section 25 of the Bernalillo County Zoning Ordinance and NMSA 1978 § 3-21-6(C), pursuant to which the matter shall not be approved except by a two-thirds (2/3) vote of all members of the Board of County Commissioners where the owners of twenty percent (20%) or more of the area of the lots and land within one hundred (100) feet, excluding public right-of-way, of the area proposed to be changed protest in writing.
6. **Request for County Verification and Certification.** Appellant respectfully requests that the County, through the "Official Use" column of the petition form, verify the legal description, UPC code, and size of each signer's parcel and certify whether the petition represents the twenty-percent (20%) threshold required to trigger the extraordinary-majority vote, and that the result of that determination be reflected in the record before the Board of County Commissioners.
7. **Good Faith.** This petition and Certification are submitted in good faith in support of the Appeal and the relief requested therein.

I declare under penalty of perjury under the laws of the State of New Mexico that the foregoing is true and correct to the best of my knowledge and belief.

Pat Hauser, Appellant

President, Maria-Diers Neighborhood Association

134 Maria Circle NW, Albuquerque, NM 87114 | (505) 228-7106

Date: _____

NOTARY ACKNOWLEDGMENT

State of New Mexico)
County of Bernalillo) ss.

On this _____ day of _____, 2026, before me personally appeared Pat Hauser, known to me (or satisfactorily proven) to be the person whose name is subscribed to the foregoing instrument, and acknowledged that he/she executed the same for the purposes therein contained.

Notary Public, State of New Mexico

My Commission Expires: _____